

Form 202

Secretary of State
P.O. Box 13697
Austin, TX 78711-3697
FAX: 512/463-5709

Filing Fee: \$25

**Certificate of Formation
Nonprofit Corporation**

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Article 1 - Corporate Name

The filing entity formed is a nonprofit corporation. The name of the entity is :

Martin Court Property Owners' Association Inc.

Article 2 – Registered Agent and Registered Office

☐ A. The initial registered agent is an organization (cannot be corporation named above) by the name of:

OR

☒ B. The initial registered agent is an individual resident of the state whose name is set forth below:

Name:

Michael Ho

C. The business address of the registered agent and the registered office address is:

Street Address:

1233 Yale St. Houston TX 77008

Consent of Registered Agent

☐ A. A copy of the consent of registered agent is attached.

OR

☒ B. The consent of the registered agent is maintained by the entity.

Article 3 - Management

☐ A. Management of the affairs of the corporation is to be vested solely in the members of the corporation.

OR

☒ B. Management of the affairs of the corporation is to be vested in its board of directors. The number of directors, which must be a minimum of three, that constitutes the initial board of directors and the names and addresses of the persons who are to serve as directors until the first annual meeting or until their successors are elected and qualified are set forth below.

Director 1: **Michael Ho**

Title: **Director**

Address: **1233 Yale St. Houston TX, USA 77008**

Director 2: **Tiffany Shipp**

Title: **Director**

Address: **1233 Yale St. Houston TX, USA 77008**

Director 3: **Eric D'Olive**

Title: **Director**

Address: **1233 Yale St. Houston TX, USA 77008**

Article 4 - Organization Structure

☒ A. The corporation will have members.

or

☐ B. The corporation will not have members.

Article 5 - Purpose

The corporation is organized for the following purpose or purposes:

1. Specifically and primarily the corporation ("Association") is a "property owners association" that: (A) is designated as the representative of the owners of property covered by the dedicatory instrument recorded by 604 Martin LLC, a

Texas limited liability company ("Declarant") under Clerk's file number RP-2022-438456 of the Real Property Records of Harris County, Texas ("Declaration") affecting the residential subdivision recorded under County Clerk's Film Code 693705 of the Map Records of the Official Public Records of Harris County, Texas, known as MARTIN COURT ("Subdivision"); (B) has a membership primarily consisting of the owners of the property covered by the Declaration for the Subdivision; and (C) manages and regulates the Subdivision for the benefit of owners of property in the Subdivision.

2. Generally:

(a) To exercise all of the powers and privileges and to perform all of the duties and obligations of the Association as set forth in the Declaration and in the Association's bylaws ("Bylaws").

(b) To fix, levy, collect, and enforce payment of any and all assessments, dues, fees, charges, interest, late fees, fines, costs of collection and foreclosure, attorney fees, trustee's fees, court costs, damages, and all other amounts due or owed to the Association, and to pay all expenses to accomplish the purposes for which these assessments, dues, fees, charges, and other amounts are levied or imposed, and to perform all of the duties and obligations of the Association as set forth in the Declaration and the Bylaws.

(c) To acquire (by gift, purchase, or otherwise), own, hold, improve, build on, operate, maintain, convey, sell, lease, transfer, dedicate for public use, or otherwise to dispose of real or personal property in connection with the affairs of the Association.

(d) To borrow money, to mortgage, to pledge, to deed in trust, or to hypothecate any or all of the Association's real or personal property as security for money borrowed or debts incurred.

(e) To have and to exercise any and all powers, rights, and privileges that a corporation organized under Texas law may now or at a later time have or exercise.

(f) To act in the capacity of principal, agent, joint venturer, partner, or otherwise.

3. Despite the above statements of purposes, the Association will not, except to an insubstantial degree, engage in any activities or exercise any powers that are not in furtherance of the primary purposes of the Association.

Supplemental Provisions / Information

1. The Association is a non-stock membership non-profit corporation. The Declaration and the Bylaws determine the number and qualifications of the members of the Association; the voting rights and other privileges of membership; and, the obligations and liabilities of members. Cumulative voting is not allowed.

2. The management and affairs of the Association are vested in the board of directors, except for those matters expressly reserved to others in the Declaration and Bylaws. The Bylaws determine the number and qualification of directors; the term of office of directors, the method of electing, removing and replacing directors, and the methods of holding a board meeting and obtaining consents.

3. There will be two classes of membership for the purpose of voting on any Association matter. The Class A Members will include each owner (excluding Declarant) of a lot within the Subdivision, and each owner will have one (1) vote for each lot owned. The Class B Member will be Declarant, and Declarant will have ten (10) votes for each lot it owns within the Subdivision. The Class B Membership will convert to a Class A Membership when (a) Declarant has conveyed all lots to owners or (b) Declarant voluntarily converts the Class B Membership to a Class A Membership by written instrument recorded in the Real Property Records of Harris County, Texas, whichever occurs first.

4. LIMITATION OF LIABILITY AND INDEMNITY:

(a) Except as provided in Paragraph (b) below, an officer or director of the Association is not liable to the Association or its members for monetary damages for acts or omissions that occur in the person's capacity as an officer or director except to the extent a person is found liable for (i) a breach of the officer or director's duty of loyalty to the Association or its members; (ii) an act or omission not in good faith that constitutes a breach of duty of the officer or director to the Association; (iii) an act or omission that involves intentional misconduct or knowing violation of law; (iv) a transaction from which the officer or director receives an improper benefit, whether or not the benefit resulted from the action taken within the scope of the person's office; or (v) an act or omission for which the liability of an officer or director is expressly provided by applicable statute. The liability of officers and directors of the Association are limited to the maximum extent allowed by the Charitable Immunity and Liability Act of 1987, Chapter 84, Texas Civil Practice and Remedies Code, as amended. If the Texas Business Organizations Code, Charitable Immunity and Liability Act of 1987, or other applicable law, is construed or amended to authorize action constituting further elimination or limitation of liability, then this Certificate of Formation will be considered to have been likewise amended to provide for any such additional elimination or limitation of liabilities to the fullest extent permitted by such applicable law, as so construed or amended.

(b) The limitation on the liability of an officer or director does not eliminate or modify that person's liability as a member of the Association. It is intended that the liability of any member arising out of any contract made by the Association, or out of the indemnification of officers or directors, or for damages as a result of injuries arising in connection with the common areas, or for liabilities incurred by the Association, will be limited to the same proportion in which he is liable for common expenses as a member of the Association.

(c) The Association will defend, indemnify, and hold harmless each person who acts as a director, officer, or committee member of the Association against any costs, expenses and liabilities which may be imposed upon or reasonably incurred by him in connection with any civil or criminal action, suit or proceeding in which he may be named as a party defendant or in which he may be a witness by reason of his or her being or having been a director, officer, or committee member of the Association, or by reason of any action alleged to have been taken or omitted by him in either such capacity. Such indemnification will be provided in the manner and under the terms, conditions and limitations set forth in the Declaration.

(d) Any repeal or modification of this Section 4 will not adversely affect any

right or protection of a director, officer, or committee member of the Association existing at the time of such repeal or modification.

5. This Certificate of Formation may be amended by the members of the Association only by the affirmative vote of the seventy-five percent (75%) majority of the total number of votes of the Association, as determined under the Declaration; however, an amendment to this Certificate of Formation will not (a) impair or dilute a right granted to a person by the Declaration, without that person's written consent, or (b) reduce the dissolution vote threshold set forth in Section 6.

6. The existence of the Association is perpetual. The Association may be dissolved by the affirmative vote of the ninety percent (90%) majority of the total number of votes of the Association, as determined under the Declaration. Upon dissolution of the Association, other than incident to a merger or consolidation, the assets of the Association will be dedicated to an appropriate public agency to be used for purposes similar to those for which this Association was created. In the event that such dedication is refused acceptance, such assets will be granted, conveyed, and assigned to any nonprofit corporation, association, trust, or other organization to be devoted to such similar purposes.

7. Any action required to be taken at a meeting of the members or directors, or any action that may be taken at a meeting of the members or directors of any committee may be taken without a meeting if a consent in writing setting forth the action to be taken, is signed by a sufficient number of members, directors, or committee members as would be necessary to take that action at a meeting at which all of the members, directors, or members of the committee were present and voted. This paragraph does not apply to any actions required to be taken in an open meeting as may be required by law, but only to the extent required by law at the time such action is taken.

8. If there is a conflict between the Declaration and this Certificate of Formation, then the Declaration will control. If there is conflict between this Certificate of Formation and the Bylaws of the Association, then this Certificate of Formation will control.

[The attached addendum, if any, is incorporated herein by reference.]

Effectiveness of Filing

☒ A. This document becomes effective when the document is filed by the secretary of state.

OR

☐ B. This document becomes effective at a later date, which is not more than ninety (90) days from the date of its signing. The delayed effective date is:

Initial Mailing Address

Address to be used by the Comptroller of Public Accounts for purposes of sending tax information.

The initial mailing address of the filing entity is:

**1233 Yale St.
Houston, TX 77008
USA**

Organizer

The name and address of the organizer are set forth below.

Eric D'Olive **1233 Yale St., Houston, TX 77008**

Execution

The undersigned affirms that the person designated as registered agent has consented to the appointment. The undersigned signs this document subject to the penalties imposed by law for the submission of a materially false or fraudulent instrument and certifies under penalty of perjury that the undersigned is authorized under the provisions of law governing the entity to execute the filing instrument.

Eric D'Olive

Signature of organizer.

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